



SPONSOR: Rep. Morrison & Sen. Lockman
Reps. Burns, Kamela Smith, Snyder-Hall, Wilson-Anton

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 78

AN ACT TO AMEND TITLE 14 AND TITLE 29 OF THE DELAWARE CODE RELATING TO RECORDINGS OF MEETINGS OF PUBLIC BODIES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend § 10004, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 10004. Open meetings.

(f) ~~Each~~ Except as provided under paragraph (f)(2) of this section, a public body shall maintain minutes of all meetings, including executive sessions, conducted ~~pursuant to~~ under this section, and shall make ~~such~~ the minutes available for public inspection and copying as a public record. ~~Such~~

(1) ~~The minutes shall~~ must include a record of ~~those~~ all of the following:

a. ~~The members of the public body present at the meeting. and a record,~~

b. Each vote taken and action agreed upon. The record of each vote must be by individual members
~~(except members, except where the public body is a town assembly where all citizens are entitled to vote), of each~~
~~vote taken and action agreed upon. Such minutes vote.~~

(2) Minutes, or portions thereof, and any public records ~~pertaining to~~ regarding executive sessions conducted ~~pursuant to~~ under this section, may be withheld from public disclosure so long as public disclosure would defeat the lawful purpose for the executive session, but no longer.

(3) All public bodies in the executive branch of state government that are subject to ~~the provisions of this~~
chapter and meet 4 or fewer times per year shall electronically post draft minutes of open public meetings, identified as “draft minutes,” to the designated State website approved by the Secretary of State within 20 ~~working~~ business days after the conclusion of the meeting. Prior to being posted, draft minutes may be distributed to members of the public body who were present at the open public meeting. Draft minutes may continue to be revised and corrected up until final minutes are approved by the public body at an open meeting. ~~All public bodies~~

(4) A public body in the executive branch of state government that ~~are~~ is subject to the ~~provisions of this~~ chapter shall electronically post final approved minutes of ~~open public~~ meetings to the designated State of Delaware website approved by the Secretary of State within 5 ~~working~~ business days of final approval of ~~said the~~ minutes.

(5)a. In addition to the minutes required under this subsection, a public body shall digitally record all meetings. The digital recording of a meeting may be audio only.

b. Except for portions of a recording regarding an executive session that may be withheld under paragraph (f)(2) of this section, the public body shall post the digital recording under paragraph (f)(5)a. of this section on the website where meeting notices and minutes are posted within 7 business days after the meeting concludes and must remain on the website for at least 1 year.

c. A technological failure that prevents or limits the recording otherwise required under paragraph (f)(5)a. of this section does not invalidate the meeting or an action taken at the meeting.

Section 2. Amend § 10008, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 10008. Livestreaming Board of Trustees meetings of public institutions of higher learning.

(c) ~~A The~~ The recording of a meeting livestreamed under subsection (b) of this section must be posted on a public website ~~within a reasonable time after the meeting concludes and must remain on the website for at least 1 year. as required~~ under § 10004(f)(5)b. of this title.

~~(e)(2) Subsections (b) and Subsection (c) of this section do~~ does not require the livestreaming ~~or recording~~ of the portion of a full Board of Trustees meeting that is in an executive session under § 10004 of this title.

Section 3. Amend § 104, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignate accordingly:

§ 104. State Board of Education; composition; term; powers and duties; qualifications; vacancies; staggered appointments; office location; compensation; removal.

(b) The State Board of Education has powers, duties, and responsibilities as specified in this title, including all of the following:

~~(13) Digitally~~ a. As required under § 10004(f)(5) of Title 29, digitally record all of the State Board's regular monthly public board ~~meetings and meetings~~, make the recordings available to the public on the Department of Education's website within 7 business days of each ~~meeting. These~~ meeting, and keep the recordings on the website for at least 1 year.

b. The recordings under paragraph (b)(13)a. of this section are not official board minutes, but are a means to enhance communication to the public and state legislators.

c. The requirements under paragraph (b)(13)a. of this section do not apply to ~~meetings where recording equipment is not available, executive sessions, or other State Board meetings, such as workshops, retreats, and committee meetings.~~ workshops and retreats.

d. The Department of Education must provide a written transcript of ~~a regular monthly public State Board meeting that is digitally recorded under this paragraph,~~ a recording posted on the website under paragraph (b)(13)a. of this section, or other reasonable accommodation, within 7 business days upon request of an individual with a hearing impairment.

Section 4. Amend § 208, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignate accordingly:

§ 208. Digital recording of board meetings.

All (a) As required under § 10004(f)(5) of Title 29, all boards of education of public school districts, vocational-technical high school districts, and all boards of directors of charter schools shall digitally record all of their public ~~meetings and shall meetings.~~ make the

(b) Except as provided under paragraph § 10004(f)(5)b. of Title 29, the digital recordings under subsection (a) of this section must be available to the public on the districts' or charter schools' websites within 7 business days ~~of~~ after each ~~meeting. These recordings shall meeting and must~~ remain available on the website for at least 1 year after their posting on the website. ~~These~~

(c) The digital recordings under this section are not official board minutes, but are a means to enhance communication to the public and to state legislators. ~~The~~

(d) Under § 10004(f)(5)b. of Title 29, the requirements of under subsection (b) of this section do not apply to ~~board executive sessions, or sessions held under § 10004(c) of Title 29.~~

(e) This section does not apply to workshops and retreats where no voting will take place.

Section 5. Amend § 503, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 503. Legal ~~status.~~ status; definitions.

(a) For purposes of this chapter:

(1) "Department" means the Department of Education.

(2) "School board" means the board of directors of a charter school.

(3) “State Board” means the State Board of Education.

(b) A charter school is a public school including 2 or more of grade kindergarten through 12 managed by a board of directors, which operates independently of any school board, under a charter granted for an initial period of 4 school years of operation and renewable every 5 school years thereafter by a public school district or the ~~State Department of Education (hereinafter in this chapter, “Department”)~~ Department, with the approval of the ~~State Board of Education (hereinafter in this chapter, “State Board”)~~, pursuant to State Board, under this chapter.

(c) For purposes of this chapter as it relates to the management of a charter school, all of the following apply to the board of directors of a charter school shall be board:

(1)a. The school board is a public body subject to the requirements of the Freedom of Information Act (FOIA), Chapter 100 of Title 29 and shall have 29, unless paragraph (c)(1)b. of this section applies.

b. If there is a conflict between a requirement under FOIA and a requirement under this title, the requirements under this title apply.

(2) The school board has the same standing and authority as a Reorganized School District Board of Education, except the power to tax.

Section 6. Amend § 504B, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 504B. ~~Open meetings.~~ School board meetings; public comment.

(a) For purposes of this section:

(2) ~~“School board” means the board of directors of a charter school.~~ [Transferred].

Section 7. Amend § 1041, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 1041. Definitions.

~~As used in~~ For purposes of this subchapter:

(1) ~~“Reorganized school district” as used in this subchapter~~ means a school district constituted and established under this chapter whether by reorganization, ~~consolidation~~ consolidation, or division.

(2) ~~“School board” as used in this subchapter~~ means the board of education of a school district which is constituted and established under this chapter whether by reorganization, ~~consolidation~~ consolidation, or division.

(3) ~~“School board member” as used in this subchapter~~ means a person duly elected or appointed to a school board in accordance with the provisions ~~for such election or appointment as provided elsewhere in this chapter.~~ under subchapter IV. of this chapter.

Section 8. Amend § 1048, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1048. Regular and special meetings; quorum; roll call vote.

(f)(1) A school board meeting must comply with the requirements under the Freedom of Information Act (FOIA), Chapter 100 of Title 29, unless paragraph (f)(2) of this section applies.

(2) If there is a conflict between a requirement under FOIA and a requirement under this title, the requirements under this title apply.

SYNOPSIS

This Act requires that under the Freedom of Information Act (FOIA), Chapter 100 of Title 29, public bodies must make digital recordings of meetings, post these recordings on their website within 7 business days after the meeting concludes, and keep the recording on the website for at least 1 year. If the meeting has an executive session, the executive session portion of the recording may be withheld from the digital recording posted on the website. The digital recording may be audio only and a technological failure that prevents or limits the digital recording of a meeting does not invalidate the meeting or an action taken at the meeting.

This Act also makes corresponding changes to existing laws that require school district boards, boards of charter schools, the State Board of Education, and the full Board of Trustees of public institutions of higher learning to make and post digital recordings of board meetings.

In addition, because school district boards, boards of charter schools, and the State Board of Education are subject to the meeting requirements under FOIA and specific meeting requirements scattered throughout Title 14, this Act clarifies that when there is a difference between requirements under Title 14 and requirements under FOIA, the requirements under Title 14 apply.

Specifically:

Section 1 adds the digital recording requirements and exceptions for meetings of public bodies to FOIA as § 10004(f)(5) of Title 29.

Section 2 requires that the digital recording of a meeting of the full Board of Trustees of public institutions of higher learning be posted on a public website within 7 days business days of the meeting, instead of “within a reasonable time”.

Section 3 revises the digital recording requirement for State Board of Education meetings to require that recordings remain on the website for at least a year and adds a reference to § 10004(f)(5) of Title 29 so that recordings of executive sessions are now required but that portion may be withheld from the recording posted on the website. Section 3 also removes the exception that does not require digital recordings of committee meetings because under FOIA, committee meetings are subject to the same open meeting requirements as a meeting of the full State Board of Education.

Section 4 adds references to § 10004(f)(5) of Title 29 to the current recording requirements for meetings of boards of education of public school districts, vocational-technical high school districts, and boards of directors of charter schools.

Section 5 and Section 8 clarify that if there is a conflict between a requirement under FOIA and a requirement under Title 14, the requirements under Title 14 apply to a board of a charter school (Section 5) or a board of a school district (Section 8).

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual, including the following:

Section 5 and Section 6 consolidate the definitions in Chapter 5 of Title 14 by transferring them to § 503(a) of Title 14.

Section 7 repeals unnecessarily repetitive language from the definitions in § 1041 of Title 14.

This Act requires a greater than majority vote for passage because § 1 of Article IX of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend a charter issued to a municipal corporation.